



SoCal United Professional Services



QUALIFIED DOMESTIC RELATIONS ORDER (QDRO) & JOINDER QUESTIONNAIRE

Client Intake Form – Retirement Division

SECTION 1 — BASIC CASE INFORMATION

1. Client Name (___ Alternate Payee or ___ Participant):

2. Client Phone Number: _____
3. Client Email: _____
4. Client Address (include city & state):

5. County Where Divorce was Finalized: _____
6. Case Number: _____
7. Date of Marriage (DOM): _____
8. Date of Separation (DOS): _____
9. Date Judgment of Dissolution Was Entered: _____
10. Is the Judgment FINAL? (Yes/No; if no, attach current status):
___ Yes or ___ No (attach current status by minute order or order)

SECTION 2 — IDENTIFICATION OF PARTIES

Participant (person who earned the retirement benefits)

1. Full Legal Name: _____
2. Date of Birth: _____
3. Social Security Number (last 4 ok for intake): _____
4. Phone Number: _____
5. Email: _____
6. Current Address (include city & state):

7. Employer Name (current or at time of employment):



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Alternate Payee (other spouse entitled to benefits)

1. Full Legal Name: _____
 2. Date of Birth: _____
 3. Social Security Number (last 4 is okay for intake): _____
 4. Phone Number: _____
 5. Email: _____
 6. Current Address (include city & state): _____
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SECTION 3 — RETIREMENT PLAN INFORMATION

A. Type of Retirement Plan (Check all that apply):

- ☐ 401(k)
- ☐ 403(b)
- ☐ 457 Deferred Compensation Plan
- ☐ Traditional Pension (defined benefit)
- ☐ Cash Balance Plan
- ☐ IRA / SEP / SIMPLE
- ☐ Military Retirement
- ☐ Federal CSRS / FERS
- ☐ CalPERS
- ☐ CalSTRS
- ☐ Other: _____
- ☐ Unknown (attach ALL retirement statements available)

B. Plan Administrator Details (if known):

1. Plan Name: _____



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2. **Plan Administrator Address (include city & state):**

3. **Plan Administrator Phone:** _____

4. **Plan Administrator Email:** _____

5. **Plan or Summary Plan Description Attached?** ____ Yes ____ No

C. Employer Information:

1. Employer during benefit accrual: _____

2. Employer Address (include city & state):

3. HR or Benefits Department contact number: _____

D. Required Supporting Documents (attach if available):

- ☐ Most recent retirement account statement
- ☐ Statements closest to Date of Separation
- ☐ Statement closest to Date of Marriage
- ☐ Summary Plan Description (SPD)
- ☐ Any letters received from plan administrator
- ☐ Judgment / MSA identifying division terms

SECTION 4 — DIVISION TERMS (FROM JUDGMENT OR AGREEMENT)

1. **Does the judgment specify how retirement is divided?**

(Attach the exact language)

- ☐ Yes
- ☐ No

2. If yes, what method does the judgment specify?

- ☐ 50/50 division of community portion
- ☐ Fixed dollar amount
- ☐ Percentage different than 50/50



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- ☐ Survivor benefits addressed
- ☐ Separate property carve-outs
- 3. **If judgment is silent, how do you want benefits divided?**
 - ☐ Standard "Time Rule" formula (marital fraction)
 - ☐ Specific percentage: _____
 - ☐ Specific dollar amount: _____
- 4. **Should gains and losses be included on the alternate payee's share?**
 - ☐ Yes
 - ☐ No
- 5. **Should pre-marital balances be excluded?**
 - ☐ Yes (provide client's pre-marital balance statement)
 - ☐ No
 - ☐ Unknown

SECTION 5 — LOANS, WITHDRAWALS, & ACCOUNT ACTIVITY

1. **Did the participant take any loans from the plan?**
 - ☐ Yes
 - ☐ No
 - If yes:
 - Outstanding loan balance: _____
 - Loan taken before or after date of separation?
2. **Did the participant take any early withdrawals, hardship withdrawals, or rollovers?**
 - ☐ Yes
 - ☐ No
 - Provide details & dates: _____
3. **Has the account been rolled into a different plan?**



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- ☐ Yes → Identify transferee plan: _____
- ☐ No

SECTION 6 — SURVIVOR BENEFITS (important for pensions)

For Defined Benefit & Pension Plans:

1. Should the Alternate Payee be awarded **survivor benefits**?
 - ☐ Yes (Strongly recommended)
 - ☐ No
 - ☐ Not applicable (401(k)/IRA type)
2. If the participant dies before retirement, should the alternate payee still receive their share?
 - ☐ Yes
 - ☐ No
3. Should the alternate payee receive **post-retirement survivor benefits**?
 - ☐ Yes, 100%
 - ☐ Yes, 50%
 - ☐ Other percentage: _____
 - ☐ No

SECTION 7 — FORM OF PAYMENT (For Pension Plans)

1. Do you want:
 - ☐ Separate interest division (each gets own lifetime benefit)
 - ☐ Shared interest division (alternate payee receives portion only while participant is alive)
 - ☐ Not sure — need plan guidance
2. Should payments start when:
 - ☐ Participant retires
 - ☐ Alternate Payee reaches earliest retirement age allowed by the plan



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- ☐ Agree on earliest legal distribution

SECTION 8 — TAX ISSUES

1. Should the Alternate Payee's distribution go to:
 - ☐ Rollover into her/his own retirement account
 - ☐ Direct payment
 - ☐ Unknown; depends on plan rules
2. Are there tax-advantaged instructions in the judgment?
 - ☐ Yes (attach)
 - ☐ No
 - ☐ Judgment is silent

SECTION 9 — JOINDER REQUIREMENTS

1. Do we need to join the retirement plan as a party to the case?
 - ☐ Yes
 - ☐ Already joined
 - ☐ Unsure
2. Plan requires joinder before reviewing QDRO?
 - ☐ Yes
 - ☐ No
 - ☐ Unknown
3. Attach any notice from plan regarding joinder.

SECTION 10 — PLAN FEES

1. Does the plan charge QDRO processing fees?
 - ☐ Yes (amount: _____)
 - ☐ No
 - ☐ Unknown



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2. Who should pay QDRO fees?

- ☐ 50/50 split
- ☐ Participant
- ☐ Alternate Payee
- ☐ As ordered by Judgment

SECTION 11 — ADDITIONAL INFORMATION ABOUT THE PLAN & BENEFITS

1. Participant's years of service: _____
2. Accrued benefit (if pension): _____
3. Vesting status: _____
4. Date plan membership started: _____
5. Is participant already retired?
 - ☐ Yes → provide retirement date
 - ☐ No
6. Is participant receiving disability benefits?
 - ☐ Yes
 - ☐ No

SECTION 12 — MISCELLANEOUS / OTHER CONCERNS

1. Does client believe the participant is hiding retirement funds?
2. Are there multiple retirement accounts?
3. Any issues with missing statements?
4. Any disputes about community vs. separate property portions?
5. Any concerns about the participant cashing out?
6. Any urgent deadlines to notify the plan?

SECTION 13 — DOCUMENTS REQUIRED (Checklist)

Client must provide ALL of the following (if available):

- ☐ Judgment of Dissolution (full copy)



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- ☐ Marital Settlement Agreement (if applicable)
- ☐ Any stipulations or addendums regarding retirement
- ☐ Most recent plan statement
- ☐ Statement closest to Date of Separation
- ☐ Statement closest to Date of Marriage
- ☐ Summary Plan Description (SPD)
- ☐ Annual benefit statements
- ☐ Any correspondence from the plan
- ☐ Pay stubs showing contributions
- ☐ Proof of loans or withdrawals

SECTION 14 — FINAL CONFIRMATION (Client Acknowledgment)

I understand that the QDRO process involves:

- Preparing the joinder
- Drafting QDRO language consistent with plan rules
- Sending draft to plan administrator for pre-approval
- Filing with the court
- Serving the plan
- Waiting for final qualification approval